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**IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, STATE OF FLORIDA
CIVIL DIVISION**

DARLENE FOLEY and
EDWARD FOLEY, her husband,
Plaintiffs,

CASE NO: 16-CA-010307

v.

GEICO GENERAL INSURANCE COMPANY,
a foreign corporation,

Defendant,

AMENDED COMPLAINT FOR DAMAGES AND REQUEST FOR JURY TRIAL

Plaintiffs, DARLENE FOLEY and EDWARD FOLEY, her husband, by and through their undersigned attorney, hereby amend their Complaint for Damages and Request for Jury Trial and sue the defendant, GEICO GENERAL INSURANCE COMPANY, a foreign corporation (hereinafter "GEICO INSURANCE") and allege the following:

GENERAL ALLEGATIONS

1. That this is an action for damages in excess of Fifteen Thousand Dollars (\$15,000.00).

2. That at all times material hereto, the Defendant, GEICO INSURANCE, was an insurance company authorized to do and doing business in Hillsborough County, Florida.

3. At all times material, defendant, GEICO INSURANCE, was a corporation doing business in the State of Florida, engaged in the sale of automobile insurance policies which included the sale of

uninsured/underinsured motorist benefits.

4. That on or about September 4, 2015, SHARON R. HILL, owned a 2006 Chevrolet that was operated by ALBERT FRANKLIN HILL, on 66th Street North at or near the intersection of Dartmouth Avenue North, Pinellas County, Florida

5. That at said time and place, ALBERT FRANKLIN HILL, did operate, maintain and/or control the motor vehicle in such a negligent manner so as to collide with the vehicle driven by the Plaintiff, DARLENE FOLEY, and cause severe and permanent injuries to the Plaintiff, DARLENE FOLEY.

COUNT I
AUTOMOBILE NEGLIGENCE

7. The Plaintiffs, DARLENE FOLEY and EDWARD FOLEY, her husband, reiterates and realleges all of the allegations contained in paragraphs 1 through 6 of this Complaint as though restated herein.

8. That as a direct and proximate result of the negligence of SHARON HILL and ALBERT FRANKLIN HILL, the Plaintiff, DARLENE FOLEY, has suffered in the past and will continue to suffer in the future the following damages:

- a. permanent personal injuries within a reasonable degree of medical probability;
- b. pain and suffering;
- c. disability;
- d. disfigurement;

- e. mental anguish;
- f. loss of capacity for the enjoyment of life;
- g. loss of earnings, past, present, and future;
- h. loss of earning capacity;
- i. medical expenses for the care and treatment of her injuries;
- j. costs related to diagnostic testing;
- k. aggravation of a pre-existing condition.

9. The injuries consist in whole or in part of a significant and permanent loss of important bodily functions, and a permanent injury within a reasonable degree of medical probability, and significant and permanent scarring or disfigurement. However, should it be determined that any such bodily injuries are not permanent, then Plaintiff, DARLENE FOLEY, claims entitlement to all damages resulting from non-permanent injuries sustained and which are based upon benefits therefore not paid by Personal Injury Protection (No Fault benefits).

10. That at the time of the accident hereinabove described, ALBERT FRANKLIN HILL and SHARON R. HILL were underinsured.

11. That notice of this accident was promptly furnished by the Plaintiff, DARLENE FOLEY, to the Defendant, GEICO INSURANCE, and the Plaintiff has complied with all conditions precedent to bringing this action.

12. That at all times material hereto, there was in full force and effect a policy of automobile liability insurance to cover the motor vehicle being operated by the third party tortfeasor for the Plaintiff's injuries and damages

described above.

13. That at all times material hereto, there was in full force and effect a policy of automobile uninsured/underinsured motorist insurance issued by the Defendant, GEICO INSURANCE, to cover the Plaintiff's injuries and damages described above and sustained while involved in a motor vehicle accident. The proceeds of the policy inure to the benefit of the Plaintiff as an insured under said policy. The policy provides underinsured motorist coverage in an amount in excess of the liability policy insuring the third party tortfeasor. The policy with the Defendant is in the possession of the Defendant and the Plaintiff is not in possession of the same at the present time.

14. That the third party tortfeasors and their liability insurance carrier entered into a settlement agreement with the Plaintiff, DARLENE FOLEY, for the policy limits of the liability policy, which settlement did not fully satisfy the claim for personal injuries of the Plaintiff.

15. That pursuant to Florida Statute § 627.727(6), the above-described settlement was approved by the Defendant, GEICO INSURANCE, and this claim is for damages sustained by the Plaintiff over and above the tortfeasor's underlying limits.

16. That a demand for underinsured motorist benefits to which the Plaintiff, DARLENE FOLEY, is entitled has been made by the Plaintiff to the Defendant, GEICO INSURANCE, and refused by said Defendant.

17. That as a direct and proximate result of the negligence of the underinsured owner and driver, the Plaintiff, DARLENE FOLEY, has sustained

damages which have been previously mentioned in this Complaint.

18. The Plaintiff is entitled to the aforementioned damages from the underinsured motorist carrier, GEICO INSURANCE.

WHEREFORE, the Plaintiff, DARLENE FOLEY, demands judgment against the Defendant, GEICO INSURANCE, for damages, post-judgment interest, costs of these proceedings and further demands a trial by jury on all issues so triable.

COUNT II
LOSS OF CONSORTIUM

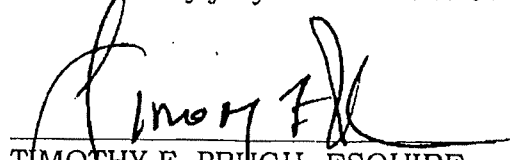
19. The Plaintiff, EDWARD FOLEY, reiterates and realleges all of the allegations contained in paragraphs 1 through 6 of this Complaint as though restated herein.

20. At all times material hereto, plaintiffs were married and residing together and enjoying a family relationship.

21. That as a direct and proximate result of the negligence of ALBERT FRANKLIN HILL and SHARON R. HILL, Plaintiff, EDWARD FOLEY, has suffered a loss of companionship, affection, society, and consortium of his wife, DARLENE FOLEY, and he has been and will continue to be deprived of the services and consortium of his wife in the future.

WHEREFORE, Plaintiff, EDWARD FOLEY, demands judgment against Defendant, GEICO INSURANCE, for damages, post-judgment interest, costs of

these proceedings, and further demands a trial by jury on all issues so triable.

A handwritten signature in black ink, appearing to read "Timothy F. Prugh", is written over a horizontal line.

TIMOTHY F. PRUGH, ESQUIRE
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